

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable Gary J. Ferrari
Judge of the Superior Court
County of Los Angeles
275 Magnolia Avenue
Long Beach, CA 90802

Re: Velazquez, Erick
CDC No.: AN5531
Case No.: NA090269
Date of Sentence: 1/18/2013

Dear Honorable Gary J. Ferrari:

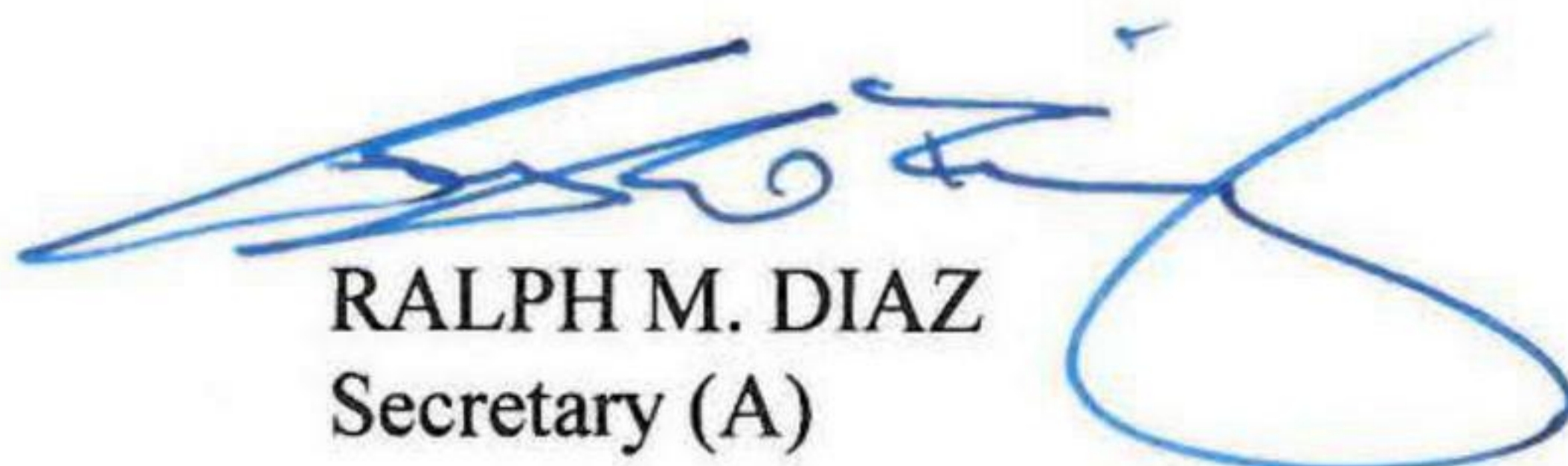
The purpose of this letter is to provide the court with authority to resentence Erick Velazquez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Velazquez was sentenced in 2013, and was convicted of section 245, subdivision (A)(2), ASSAULT WITH A FIREARM. The trial court sentenced inmate Velazquez on 1/18/2013. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Velazquez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Velazquez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

OK TO GO STWD NOTED
Feb 14, 13 DC

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES; SOUTH DISTRICT

CONFORMED COPY

OF ORIGINAL FILED
Los Angeles Superior Court

FEB 07 2013

John A. Clarke, Executive Officer/Clerk

By: *[Signature]*, Deputy

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: VELAZQUEZ, ERICK ✓

DOB: 05-05-92

NA090269

-A

AKA: GALLO

CII NO.: A32339174

BOOKING NO.: 2900156

COMMITMENT TO STATE PRISON
ABSTRACT OF JUDGMENT

☐ NOT PRESENT

☐ AMENDED
ABSTRACT

DATE OF HEARING

01-18-13

DEPT. NO.

SOM

JUDGE

GARY J. FERRARI ✓

CLERK

KATHY GAINES

REPORTER

THERESE CLAUSSEN

PROBATION NO. OR PROBATION OFFICER
X-2104090

☐ IMMEDIATE SENTENCING

COUNSEL FOR PEOPLE

EMILY D. BAKER

COUNSEL FOR DEFENDANT

NICHOLAS REYES ☐ APPTD.

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
(number of pages attached)

ENTERED
INTO OBIS

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	JURY	COURT	P.L.S.	TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Under 10-1/2 Yr)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
																YRS.	MOS.
08	PC	211**	2ND DEGREE ROBBERY	2011	12-07-12			X	U							5	0
05	PC	245(A)(2)	ASSAULT WITH A FIREARM	2011	12-07-12			X	L	X						(2)	(0)

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
08	186.22(B)(1)(C)PC	10	12022.53(C)PC	20			30 0
05	186.22(B)(1)(C)PC	(10)	12022.7(A)PC	(3)			(13) 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: (35 0)

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: VELAZQUEZ, ERICK

NA090269

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$8400.00 per PC 1202.4(b) forthwith per PC 2085.5; \$8400.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$40.00 per PC 1465.8.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

DEFENDANT TO PAY \$30.00 CRIMINAL CONVICTION ASSESSMENT PURSUANT TO 70373 G.C.

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin:

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC1170(d).)
e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	587	511	☒ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
01-18-13		DMH	CDCR CRC

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made on this date.

DEPUTY'S SIGNATURE

S. CARTER

02-08-13